REPORTABLE (37)

MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER AND RURAL DEVELOPMENT
v
(1) MAMINA HOPE RESOURCES (PRIVATE) LIMITED
(2) THE REGISTRAR OF DEEDS

SUPREME COURT OF ZIMBABWE
HARARE: 13 FEBRUARY 2026 & 17 JUNE 2026

C. Manyeza, for the applicant

A.S. Ndlovu & *G. Majirija*, for the first respondent

No appearance for the second respondent

IN CHAMBERS

MAFUSIRE AJA:

INTRODUCTION

[1] This is a chamber application in terms of r 50 of the Supreme Court Rules, 2025 ("the Rules"] for condonation and an extension of time within which to file an appeal. The intended appeal is against a judgment of the High Court of Zimbabwe ("the court *a quo*") sitting at Harare and delivered *ex tempore* on 17 November 2025. The transcribed version of the judgment was uploaded on the Integrated Electronic Case Management System [IECMS] on 29 December 2025.

[2] In terms of r 45 (1) (a) of the Rules, an appeal from a judgment of the court *a quo* to this Court has to be noted within fifteen [15] days of the date of the judgment. In the present case, reckoning the time from the date of the *ex tempore* judgment, the applicant had until

8 December 2025 to file his appeal. He did not. He now wants to do so. His application for condonation was made after some one (1) month and about sixteen (16) days after the judgment of the court *a quo*.

[3] The first respondent opposed the application. The second respondent is the Registrar of Deeds. He was cited as a nominal party on account of the responsibilities and functions of his office in relation to the registration of title to land. He filed no papers.

[4] I heard the application on 13 February 2026 and reserved judgment. I had some concerns regarding the propriety and cogency of the application. I wanted to give the matter further consideration. This now is my judgment.

THE FACTS

[5] The first respondent is a private company the shareholders of which are indigenous black Zimbabweans. The applicant is a Minister of Government who, among several other portfolios, is in charge of lands, agriculture and rural development. In terms of the constitutional dispensation prevailing at the material time, he was the authority responsible for the compulsory acquisition of agricultural land which might be required for any such purpose as the Government might determine.

[6] On three occasions, the applicant desired and took steps to acquire the piece of land near the town of Chegutu, Mashonaland West Province, owned by the first respondent and known as a certain piece of land in the District of Kadoma, called the Remaining Extent of Hope Farm, measuring 1 113, 5991 hectares and held under deed of transfer number 3050/78 [“the property”].

[7] The central dispute in this matter concerned the propriety of the applicant's actions to acquire that land. It was also to do with the rights which the first respondent perceived to have, not only in regards to the property, but also to contest its acquisition.

[8] In summary, the process of compulsory acquisition of agricultural land in terms of s 72 of the Constitution entails the State, through the applicant, identifying the piece of land as may be required for such public purposes as settlement for agriculture, publishing a notice in the Government Gazette and identifying the land, right or interest in it. When that is done, the land, right or interest in it become vested in the State with effect from the date of publication. As soon as possible, the second respondent is required to make the necessary endorsements on the title deed, formally cancelling the prior title deed and registering a new one in favour of the State. Except for improvements as might have been effected on the land before the acquisition, the State pays no compensation for such acquisition.

[9] There are interesting provisions regarding the consideration to be given to the people of Zimbabwe on the compulsory acquisition of land and the rights or obligations to receive or pay compensation for the land compulsorily acquired. These provisions are s 72 (7) and (8) of the Constitution. They read as follows:-

> "(7) In regard to the compulsory acquisition of agricultural land for the resettlement of people in accordance with a programme of land reform, the following factors must be regarded as of ultimate and overriding importance -
>
> (a) under colonial domination the people of Zimbabwe were unjustifiably dispossessed of their land and other resources without compensation;
>
> (b) the people consequently took up arms in order to regain their land and political sovereignty, and this ultimately resulted in the Independence of Zimbabwe in 1980;

(c) the people of Zimbabwe must be enabled to re-assert their rights and regain ownership of their land; and accordingly—

(i) the former colonial power has an obligation to pay compensation for agricultural land compulsorily acquired for resettlement, through an adequate fund established for the purpose; and

(ii) if the former colonial power fails to pay compensation through such a fund, the Government of Zimbabwe has no obligation to pay compensation for agricultural land compulsorily acquired for resettlement.

(8) This section applies without prejudice to the obligation of the former colonial power to pay compensation for land referred to in this section that has been acquired for resettlement purposes."

[10] In this case, on two occasions in the past the property was designated for compulsory acquisition. The first of such designations was in 2013. The first respondent instituted proceedings in the court *a quo* challenging the designation. The matter was resolved amicably after the applicant, among other things, admitted that the property had erroneously been acquired since it belonged to black indigenous Zimbabweans. An affidavit to that effect by a Chief Lands Officer in the applicant's ministry had been filed with the court *a quo* which proceeded to issue an order by consent, setting aside the acquisition.

[11] However, in 2018 the applicant proceeded to acquire the property again. Again, the first respondent challenged the acquisition. The applicant did not contest the proceedings. The court *a quo* went on to nullify the acquisition. After that, the first respondent applied for and was granted a certificate of "no present interest" in accordance with ss 3 and 5 of the Land Acquisition (Disposal of Rural Land) Regulations, 1999 [SI 287/1999]. The first respondent intended to subdivide the property into residential stands. It said it was granted a sub-division permit.

[12] In 2019, and unbeknown to the first respondent, the applicant proceeded to gazette the property for compulsory acquisition for the third time. Again for the third time, the first respondent, under case number HCH 1938/25, applied to have the acquisition set aside, arguing that, among other things, it must have been done in error as the property was still owned by indigenous Zimbabweans and that nothing had changed in that regard since the two previous designations. The first respondent made a further point that the property was now peri-urban property and no longer agricultural land.

[13] A letter from the applicant's office dated 4 April 2025 produced before the court *a quo*, stated that the Department of Lands had no objection to the subdivision of the property as proposed by the first respondent since the land was indigenously owned.

[14] However, in spite of the letter aforesaid, the applicant formally opposed the application on several grounds. He argued that the property was required for public purposes, specifically for resettlement, and that the State had already resettled more than two hundred [200] families on it. The applicant also argued that the certificate of "no present interest" had been issued in error but still stated that at that time the State had no interest in the property.

[15] The applicant further argued in the court *a quo* that the State had not contested previous proceedings because it had been of the belief that indigenously owned farms could not be acquired. He argued that this was a wrong procedure since the courts have no jurisdiction to reverse land acquisition by the State. He concluded by stating that the State had satisfied the requirements for compulsory acquisition and that the first respondent's recourse in terms of the Constitution was to apply for compensation, not to challenge the acquisition.

PROCEEDINGS IN THE COURT *A QUO*

[16] The court *a quo* handed down its judgment *ex tempore* on 17 November 2025. It granted the first respondent's application and issued the following order:

> "1. The gazetting under GN 1372/2019 of Hope Farm, being the remaining extent of Hope Farm in the district of Gatooma, formerly district of Hartley, measuring 1 131,5991 hectares be and is hereby nullified.
>
> 2. The endorsement by the second respondent on the deed of transfer no. 3050/78 for Hope Farm being the remaining extent of Hope [*sic*] in the district of Gatooma, formerly district of Hartley, measuring 1 131, 5991 hectares which endorsement deals with the acquisition of the farm by the first respondent be and is hereby excluded from current state land [*sic*].
>
> 3. The first respondent shall pay costs."

[17] The court *a quo* considered that the applicant could not proceed to gazette the property for the third time in the face of two existing orders which were *extant*. It concluded that the matter was now issue estoppel, especially given the pronouncement by the Chief Lands Officer in the applicant's ministry that the property belonged to indigenous persons and was therefore exempt from acquisition.

[18] The court *a quo* further stated that there ought to be finality in litigation and that the applicant could not be allowed to blow hot and cold.

[19] In the court *a quo*, counsel for both parties were in attendance to note judgment. On 9 December 2025, a day after the last day to note an appeal, the applicant's legal practitioners wrote to the Registrar of the court *a quo* asking for the reasons for the judgment. The transcribed judgment was uploaded on the IECMS platform on 29 December 2015. However, it is common cause that the parties only accessed it on 7 January 2026.

[20] According to the applicant's affidavit in the present application, the instruction by the applicant to its legal practitioners to note an appeal was transmitted on 16 January 2026. On 19 January 2026 it was agreed between the applicant and the legal practitioners to make the present application. The application was finally launched on 27 January 2026.

RELIEF SOUGHT

[21] In terms of his draft order, and in summary, the applicant sought that condonation and an extension of time within which to note an appeal against the decision of the court *a quo* be granted, that he be allowed to file the appeal within seven [7] days of the date of the court order and that each party paid their own costs.

EXPLANATION ON THE REASONS FOR THE DELAY

[22] In his founding affidavit in support of the application, the applicant correctly observed that given that the judgment in the court *a quo* was handed down on 17 November 2025, the period of the delay was 1 month and 10 days. He argued that such a delay was not inordinate.

[23] The applicant further averred that the transcribed judgment was made available only thirty-one [31] days later and that the rest of the period of delay was attributable to certain "administrative procedures" or "processes" within his ministry and in communication with the legal practitioners. He argued that the applicant is an administrative authority whose body is vast and that, as such, the period of delay was reasonable. It was said he required written reasons for the judgment to decide whether or not to appeal.

[24] During the hearing, asked whether different rules should apply to administrative authorities that deem themselves to be vast, Ms *Manyeza*, for the applicant, was quick to

deny any such suggestion and to stress that rules are rules and that they apply to all litigants alike.

[25] Regarding the prospects of success of the intended appeal, the applicant argued that he intended to rely on s 72 (2), s 73 (3) (c) and s 295 of the Constitution to challenge the judgment of the court *a quo* and force an enquiry into whether or not the acquisition in question could be reversed just because the property was indigenously owned and whether the common law grounds of estoppel override stated constitutional provisions. The applicant did not elaborate on the constitutional provisions aforesaid or on how the enquiry would be carried out and by who.

[26] The first respondent vigorously opposed the application. It made the point that the applicant's delay was not adequately explained. It zeroed in on the period between the handing down of the judgment, on 17 November 2025, and 8 December 2025, which was the last day when the appeal had to be noted. The first respondent stressed that there was no explanation by the applicant why a request for reasons for judgment [in effect, a request for a transcript of the reasons because these had been furnished *ex tempore* was made only on 9 December 2025 when, by that time, the applicant was already out of time.

[27] The other period the first respondent focused on was the phase between 7 January 2026, when the transcribed judgment was made accessible to the parties on IECMS (even though it had been uploaded on 29 December 2025), and 27 January 2026, when this application was filed. The first respondent averred that the applicant made no attempt to explain this period of twenty [20] days.

[28] The first respondent argued that, given that the judgment was delivered on 17 November 2025, the period for appeal lapsed without the applicant or its legal practitioners having

done anything and that even after the transcribed judgment had been uploaded, the applicant took a further twenty [20] days to launch this application. Such conduct, the first respondent submitted, must be taken as a clear and unpardonable case of a wilful disdain of the Rules of this Court. It further argued that the applicant's legal practitioners were well aware of the reasons for judgment and that an appeal could easily have been formulated on the basis of such knowledge, with the notice of appeal being subsequently amended, if the need arose.

[29] On prospects of success, the first respondent argued that the grounds of appeal were defective and that, contrary to the requirements of the Rules, the grounds were not clear and concise. It was argued that, among other things, the appellant's intended grounds of appeal did not address the findings of the court *a quo* sought to be impugned, or whether the challenge was on findings of fact or of law.

[30] On the substantive merits of the dispute, the first respondent argued, among other things, that the applicant could not possibly proceed with the designation of the property for the third time in the face of two previous orders of the court *a quo* which were still *extant* and about which he had done nothing.

[31] In conclusion, the first respondent dwelt on the severe prejudice that it said it would suffer if the applicant succeeded in its intended course of action, given that it had already subdivided the property in question. It further submitted that it was at an advanced stage of developing it into residential properties, with contracts having been signed with different land developers and several individuals and organizations having already purchased some of the sub-divisions.

[32] The first respondent rounded off its argument by stressing that there ought to be finality in litigation, especially in circumstances where, as in this case, the applicant had on two occasions designated the same property for acquisition, only to acquiesce to the setting aside of the designation, expressly admitting that the designations had been made in error given the identity of the owners of the property and the fact that the property had since changed status from being agricultural land to peri-urban.

ISSUE FOR DETERMINATION

[33] The substantive issue for determination was whether the applicant satisfied the requirements for condonation for failure to comply with the rules of this Court and for an extension of time within which to appeal.

ANALYSIS

[34] Condonation is an indulgence which may be granted at the discretion of the court. By granting condonation and an extension of time, the Court is appreciating that a breach of its rules has occurred, but nonetheless, it permits the infraction to be excused in the interests of justice and fairness: see *Mupindu & Ors* v *Mupindu & Anor* SC 115/25. The applicant must take the Court into his confidence and give an honest account of his default: *Zimslate Quartzite (Pvt) Ltd & Ors* v *CABS* SC 34/17. He must be careful not to take the Court for granted: *Musanhu* v *City of Harare* SC 07/25;

[35] In *Viking Woodwork (Pvt) Ltd* v *Blue Bells Enterprises (Pvt) Ltd* 1998 (2) ZLR 249 [S], at p 251C - D, this Court stressed that an application for condonation of the late filing of the application for rescission should be done as soon as a party realises that he has not complied with the rules, and that a party that does not seek condonation as soon as

possible, should give an acceptable explanation, not only for the delay in making the application for rescission, but also for the delay in seeking condonation.

[36] From the plethora of cases on the subject, the requirements for an application for condonation for the late noting of appeal and an extension of time within which to do so can be summarised as follows:

(i) the delay involved must not be inordinate, having regard to the circumstances of the case;

(ii) there must be a reasonable explanation for the delay;

(iii) there must exist good prospects of success on the merits;

(iv) consideration must be given to the possible prejudice to either of the parties should condonation and an extension be granted or refused;

(v) consideration must also be given to the need for finality of proceedings, the convenience of the court and the avoidance of unnecessary delays in the administration of justice;

(vi) all these requirements call for a balancing act as they are considered cumulatively, with each one of them complementing the other, such that, among other things, a weak explanation for the reason for the delay may be redeemed by strong prospects of success, and conversely, strong prospects of success may not excuse a flagrant disregard of the rules.

[37] Some of the authorities on condonation additional to those already cited above include *Apostolic Faith Mission & Ors* v *Murefu* SC 28/03; *Maheya* v *Independent African Church* 2007 (2) ZLR 319 (S) at 323B-C; *Dube* v *Matseka* SC 48/23; *Unki Mines (Pvt) Ltd* v *Shurugwi Town Council & Anor* SC 13/24 and *Ntangazana* v *Member of the Executive Council for the Department of Education, Eastern Cape* [2025] ZASCA 160.

SYNTHESIS

[38] The explanation for the reasons for delay lacks cogency or merit. To begin with, the extent of the delay is not considered in the abstract. It is considered against a background of the facts peculiar to each case: See *Nelson* v *Potgieter & Ors* [2023] ZAECMKHC 81,

para 21. There is no tariff for periods of delay. The same period of delay may be viewed as inordinate in one case and not inordinate in another, given the different circumstances.

[39] In this case, on two occasions in the past, namely 2013 and 2018, the applicant consented to the property being spared designation by reason of the fact that, in terms of Government policy, stated in writing to the court, indigenously owned farms should not be designated for acquisition. Whether this position is, in fact, mere policy or actually a constitutional imperative, is not the point. Rather, the point is that on the third occasion in 2019, when the applicant designated the property for the third time and the first respondent took legal action again, the court *a quo*, for the first time, considered the matter and gave judgment on the merits.

[40] Whether that judgment of the court *a quo* is, in fact, correct or not, is not the point for the moment, in considering the extent of the delay. The point is that, after its success in the court *a quo*, the first respondent literally moved on. Among other things, it proceeded to subdivide the property, crucially and according to the uncontested facts on record, being granted the permission to do so by both the local authority and the applicant's ministry. As alluded to earlier, the court *a quo* referred to a letter on record dated 4 April 2025 from the applicant's ministry, supporting the subdivision. Besides that, after the second order of the court *a quo* in 2018, the first respondent had obtained from the applicant's ministry a certificate of "no present interest" in pursuance of its intention to subdivide the property.

[41] Therefore, given the nuts and bolts of this case, a period of delay amounting to one month and some sixteen days is manifestly inordinate. Plainly, time was of the essence. But the issue does not end there.

[42] According to the case of *Viking Woodwork (Pvt) Ltd* above, an application for condonation of the late filing of the application for rescission should be done as soon as a party realises that he has not complied with the rules. In this case, on 17 November 2025 the applicant, through its legal practitioners, knew of the decision of the court *a quo*, and the reasons therefor. It did not appeal. On or before 8 December 2025, the cut-off date, there was nothing stopping him from appealing and formulating reasonable grounds of appeal. But most importantly, no explanation was given for the period of delay between 17 November 2025 and 8 December 2025.

[43] As a matter of fact, by 5 December 2025, the applicant himself, or officials in his Ministry, got to know about the decision of the court because the legal practitioners wrote to inform him or them. According to law, the applicant was obliged to submit the application for condonation within a reasonable period after getting knowledge of the decision and the judgment. He did not. But even accepting that the transcript of the judgment was available to the parties only on 7 January 2026 (despite it having been uploaded on 29 December 2025) a further period of delay amounting to twenty [20] days was still inordinate given that, to his knowledge, the applicant was already subdividing the farm with the blessings of his ministry. But again it does not end there.

[44] There were discrepancies in the founding papers regarding some of these important dates. In the application it was stated that the judgment was accessed on 7 January 2026. However, in the founding affidavit, it was alleged that reasons for judgment were received on 14 January 2026. Be that as it may, the only explanation for the delay by the applicant was that there were some "administrative procedures" that hindered him from appealing the judgment immediately after the transcribed version was uploaded.

[45] But what were these "administrative procedures" that would require a staggering twenty [20] days, given that the applicant was already way out of time? Counsel wisely conceded that there are no separate rules for different litigants. The reality is that not only was there no explanation at all for the crucial periods of delay in this matter, but also that the only globular explanation which the applicant proffered for all the delays was not reasonable.

[46] In considering the issue of prejudice, there can be no doubt that, given the situation on the ground as narrated above, the prejudice to the first respondent would be self-evidently enormous should the applicant be allowed to re-open this dispute by launching his intended appeal. The applicant's ministry has been flip-flopping since 2013. The court *a quo* said it has been blowing hot and cold. The applicant's claim that he has settled 200 families on the property is difficult to appreciate when what the first respondent is doing on the property had the blessing of the authorities, including the applicant's ministry. Fairness and the interests of justice would require that this matter be laid to rest. It would not be conducive to the administration of justice that the applicant be allowed to litigate over the same issue *ad infinitum*.

[47] However, the applicant might well have an arguable case on the merits. It cannot be stated with any degree of certainty that the appeal suffers from predictable failure. The intended grounds of appeal are listed in the draft notice of appeal as follows:

(i) The court *a quo* erred and misdirected itself in failing to determine whether or not the farm was acquired in terms of s 72 [2] of the Constitution.

(ii) The court *a quo* erred and misdirected itself in failing to determine whether or not the farm, being indigenously owned, could not be acquired.

(iii) The court *a quo* erred and misdirected itself in resorting to common law principles of estoppel, which cannot override constitutional provisions, particularly ss 72 (2), 72 (3), (c) and 29.

[48] When determining an application such as the present, one is merely performing a gate-keeping function. One is not sitting to determine the appeal itself, even though it is incumbent upon the gate-keeper to evaluate the grounds to see whether the intended appeal is arguable. It is the function of the gate-keeper to reject prospective appeals that lack merit: see *Makwabarara* v *City of Harare & Ors* 2020 (2) ZLR 873 (S). However, where there exists some arguable point, it is in the interests of justice that the appeal be determined by the full Bench of the Court.

[49] The patent defect in the notice of appeal, which cited 19 December 2025 as the date of judgment, instead of 17 November 2025, thereby breaching r 44 [1] of the Rules, could be something which the applicant could probably rectify. However, it would appear that the court *a quo*, among other things, did not determine all the issues that the parties had listed for determination. In its judgment, the court *a quo* even listed and acknowledged them. For example, the issue whether or not the property was peri-urban land or agricultural land was one of the issues listed for determination. However, the court *a quo* skirted it and several others, holding that the issues that the parties had identified did not address the pertinent legal points arising from dispute. It considered that the pertinent legal point was that of issue estoppel, arising from the two previous orders of that court as explained above.

[50] At the hearing in the court *a quo*, the applicant's basic argument was that the property was still agricultural land which the State could acquire in terms of the Constitution without contest and with the courts having no jurisdiction to interfere, the rights of the

first respondent, as an indigenous Zimbabwean, being confined to seeking compensation in terms of s 295 of the Constitution.

[51] On the other hand, the first respondent argued that the property was peri-urban land which is exempt from compulsory acquisition in terms of the Constitution. In support of its position, the first respondent referred to some documents, including some letter from the local authority, among other things, stating that the property formed part of the municipal wards under it. The court *a quo* does not seem to have determined this particular issue. Earlier on in its judgment, it had merely declared that the property was peri-urban land, but without actually deciding the point.

[52] The right of the State to compulsorily acquire land in terms of s 72 is confined to agricultural land as defined. Such land excludes Communal Land or land within the boundaries of an urban local authority or within a township established under a law relating to town and country planning.

[53] In this case, in the face of the applicant insisting that the property was agricultural land and that any change of status of land should follow due process, this was an aspect that needed to be determined. It may need ventilation on appeal, especially in the light of the judgment of this Court in *Toro* v *Vodge Investments (Pvt) Ltd & Ors* SC 15/17 and that of the Constitutional Court in *Fletcher* v *Minister of Lands, Agriculture, Fisheries, Water & Rural Development N.O. & Ors* CCZ 14/25 which explained, among other things, how land may transform from being agricultural land to being peri-urban land. .

[54] Furthermore, the defects that the first respondent alleges afflict the grounds of appeal may not be so apparent. These grounds generally impugn the decision of the court *a quo* on the aspect of issue estoppel and the power of the courts to reverse compulsory

acquisition of land in the face of the provisions of the Constitution ousting such jurisdiction. These are arguable issues.

DISPOSITION

[55] In spite of the lack of an explanation altogether of the delay in noting the appeal, or the lack of a reasonable explanation for some of the periods of delay, it is important that the matter be determined finally on appeal. As regards the question of costs, there is no reason for a special award or even an award of costs altogether given that none of the parties has won or lost out rightly. Accordingly, the following orders are hereby made:-

(i) The application for condonation and extension of time within which to note an appeal against the decision of the High Court under judgment number HH 850/25 in case number HCH 1938/25 be and is hereby granted.

(ii) The applicant shall file his appeal aforesaid within seven [7] days of the date of this order.

(iii) Each party shall pay their own costs.

Civil Division of the Attorney-General's Office, applicant`s legal practitioners.

Mabundu & Ndlovu Law Chambers, respondent`s legal practitioners.